

FINAL REPORT (CHARGE SHEET) Filed under Section 173(2), Code of Criminal Procedure, 1973	CRIME NO.: 118/2026 PS: MIDC ANDHERI (EAST) CASE FILED AS R.C./S.C. 118 of 2026
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FINAL REPORT / CHARGE SHEET

In the Court of the Chief Metropolitan Magistrate, Borivali, Mumbai

POLICE STATION / CRIME	MIDC Andheri (East) — Crime No. 118/2026
DATE OF REGISTRATION	05-Feb-2026
INVESTIGATING OFFICER	PSI Sandeep R. More, MIDC (E) PS
DATE OF SUBMISSION	22-Mar-2026 (period of investigation: 45 days)
ACCUSED	Rajesh Kumar alias R.K., s/o Suraj Prasad, 39 yrs, r/o 214, Shivaji Nagar, Govandi, Mumbai
STATUS OF ACCUSED	Arrested on 12-Mar-2026; forwarded to judicial custody; charge-sheeted
FINAL SECTIONS	Sections 420, 467, 468, 471 read with 120B, Indian Penal Code

1. SYNOPSIS OF INVESTIGATION

Investigation established that the accused, in furtherance of a common criminal conspiracy with two absconding associates, dishonestly induced Shri Anil Kulkarni to part with ₹62,00,000 on the false representation of a non-existent real-estate project. The accused opened a bank account in the name of a fictitious 'Nimbus Buildcon Ltd.' using forged incorporation documents and forged specimen signatures, received the complainant's funds, and immediately withdrew the entire amount in cash. The accused was arrested on 12-Mar-2026 from a rented premise in Govandi; an amount of ₹4,75,000, a forged stamp of the company, two mobile phones and one laptop were recovered under a seizure memo attested by two independent panch witnesses.

2. STATEMENTS OF WITNESSES EXAMINED U/S 161 CrPC

Witness	Name & Particulars	Date of Statement	Gist of Statement
PW-1	Anil D. Kulkarni — complainant, proprietor M/s Sunrise Infra Ventures	05-Feb-2026	Narrated the cheating in detail; identified accused in TI parade on 15-Mar-2026
PW-2	Sunil Jadhav — reception staff, MIDC office	07-Feb-2026	Received the accused thrice; identified his photograph from mobile
PW-3	Deepak Rane — accountant, Sunrise Infra	07-Feb-2026	Prepared RTGS transfer instructions; verified beneficiary details
PW-4	Mohd. Irfan — security guard	08-Feb-2026	Saw accused leave in white Hyundai Creta MH-01-XX-4522 on 28-Jan-2026
PW-5	Shri R. V. Khandekar — Manager, HDFC MIDC	12-Feb-2026	Confirmed beneficiary account opened 10-Jan-2026; cash withdrawals of ₹62,00,000
PW-6	Raksha Rao — Asst. Registrar, Companies ROC	18-Feb-2026	Certified that 'Nimbus Buildcon Ltd.' is not a registered company
PW-7	Dr. Nalini Menon — Dy. Director, FSL Kalina	05-Mar-2026	Handwriting report confirms forged signatures & fabricated documents
PW-8	API Meera Deshmukh — Investigating Officer	20-Mar-2026	Detailed investigation summary, recovery & CCTV analysis

3. LIST OF EXHIBITS / ARTICLES SEIZED & FORWARDED TO COURT

Exhibit	Description	Seized/Collected From	Remarks
A-1	Forged RERA certificates (2 nos.)	Complainant	Forwarded to FSL
A-2	Fake allotment letters (4 nos.)	Complainant	Forwarded to FSL
A-3	Project brochure — 'The Sovereign Residences'	Complainant	Forwarded to FSL
A-4	RTGS acknowledgement receipts (2 nos.)	Complainant	—
A-5	Beneficiary account opening file	HDFC Bank, MIDC	Under banker's attestation
A-6	Cash withdrawal vouchers (5 nos.)	HDFC Bank	Withdrawal of ₹62,00,000
A-7	Recovered cash ₹4,75,000	Seizure 12-Mar-2026	Under Panchanama
A-8	Forged company rubber stamp	Seizure 12-Mar-2026	Forwarded to FSL
A-9	Mobile phones (2 nos.)	Seizure 12-Mar-2026	Digital forensics pending
A-10	Laptop (HP ProBook)	Seizure 12-Mar-2026	Digital forensics pending
A-11	CCTV footage of MIDC office lobby	Sunrise Infra Ventures	Dated 28-Jan-2026

4. REASON TO BELIEVE ACCUSED GUILTY

The prosecution case rests on (i) the direct and credible testimony of the complainant; (ii) corroboration by independent witnesses and CCTV footage; (iii) forensic opinion of FSL, Kalina, confirming that the documents relied upon by the accused are fabricated and the purported signatures are not genuine; (iv) unimpeachable documentary evidence from HDFC Bank establishing receipt and dissipation of funds; and (v) recovery of incriminating articles from the personal custody of the accused. On the above material, there exists sufficient ground to proceed against the accused for the offences charged.

5. DOCUMENTS/CERTIFICATES FILED WITH CHARGE SHEET

Copy of FIR; statements recorded u/s 161 CrPC of witnesses PW-1 to PW-8; seizure panchanamas; CCTV preservation memo; FSL report; bank verification certificate; ROC non-registration certificate; TIP proceedings report; arrest memo and medical report of the accused; and the covering report of the Investigating Officer under Section 173(2) CrPC.

Prepared by:

PSI Sandeep R. More

Investigating Officer, MIDC (E) PS

Approved by:

ACPI Vishal S. Patil

Zone 8, Mumbai City

Forwarded to Court, 22-Mar-2026